

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 31, 2026 TIME: 8:30 A.M.

If there is no opposition to the tentative, the court will sign the proposed order submitted by counsel. Counsel is directed to serve a copy of the signed orders, with the next hearing date, on defendants and cross-complainants Kevin O'Donoghue and Carrie O'Donoghue.

No. 25CV02936

TD BANK v. CONTRERAS

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the court will sign the proposed order submitted by counsel. Counsel is directed to serve a copy of the signed order, with the next hearing date, on Mary Contreras.

No. 22CV02512

MAYNARD et al. v. ARREDONDO et al.

DEFENDANTS' MOTION TO SET ASIDE DISMISSAL; CCP §473(b)

The unopposed motion is granted pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision b. The April 1, 2026, dismissal without prejudice order is vacated. The court will set a further case management conference to oversee the parties' memorialization of their settlement and entry of dismissal.

The moving party bears the burden of proving they are entitled to relief under section 473, subdivision b. The court is empowered to relieve a party "upon any terms as may be just ...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (§ 473, subd. (b).) Any party to the action or his or her legal representative may seek relief under section 473, subdivision b and relief is mandatory when it is based upon an attorney affidavit of fault.

Defendants' counsel declares that she failed to address the April 1, 2026, OSC sooner and was prevented from appearing at the April 1, 2026, hearing due to technical difficulties (the court failed to pick up (apparent Zoom mishap)). The parties still need court supervision of their settlement and lot line adjustment since communication between them has ceased and the settlement details have yet to be memorialized. (Dunn Declaration.)